LAW EDGE

Professional CPD

Private Client CPD | Monthly Sample Issue

When files are reviewed, the issue is not what was done. It is what cannot be shown.

Across most firms, this is not applied consistently.

Law Edge CPD:

Applied on file.

Visible in the record.

Defensible when it matters.

Issues covered in this month's file work

- Lifetime gifts and deprivation of assets
- Capacity and decision-making risk
- Estate administration and liability exposure
- Trust structures and tax implications
- Recent case developments and practical impact

Monthly CPD applied within live client work

• Risk is identified as it arises

• Current law is applied in real time

• Decisions are recorded and defensible on file

Because when a file is tested, the record determines the outcome.

No Seminars | No Webinars | No separate CPD systems or admin

Introduction

Most firms believe their CPD is effective.
That assumption is tested when files are reviewed.

On review, the same issues appear:

- reasoning is not recorded in a way that can be relied on
- similar issues are handled differently
- key risks are not identified consistently
- supervision is not visible in the record

The work may have been done, but if it cannot be shown, it cannot be relied on.

When files are reviewed, decisions are questioned. At that point, the file does not support the position, creating exposure from lack of visible evidence.

A structured, practical approach

Law Edge Monthly CPD is applied directly within live file work.

Each issue is applied within the file, not separate training:

- consistent handling across matters
- earlier identification of risk
- visible supervision on file
- consistent, defensible records

Used on live matters, it establishes how decisions are recorded on the file.

Read in under 30 minutes | Applied immediately | Captured as part of the work
Equivalent to one hour of CPD, without taking time away from the file.

Across your firm

Used consistently across the firm, this makes the work already being done visible, consistent, and reliable when tested.

Designed to be used across your team immediately, within existing file work.

Because when a file is reviewed, the record determines the outcome.

The outcome

- Clear, supported decision-making
- Reduced exposure on review, audit, or challenge
- Greater consistency across fee earners
- CPD applied and evidenced as work is completed

Not additional training, this ensures the work is visible, consistent, and reliable when tested.

© 2026 Law Edge Professional CPD. All rights reserved.

Premium Insight

From Drafting to Risk Management

The shift

Supervision is not judged by whether it takes place, but by what can be seen on the file.

What this means in practice

It is no longer enough for decisions to be reviewed or discussed.

The file must show:

- what was considered
- what decision was made
- why that decision was reached

Where the gap appears

Supervision does take place. What is not consistently visible on the file is how clearly this is recorded, particularly across fee earners, matters, and over time.

On review, this shows up as:

- inconsistent reasoning
- varying levels of detail
- limited visibility of supervision

Why this matters

The issue is not that work has not been done, It is that it cannot be clearly demonstrated.

Across multiple files, this creates inconsistent records, unclear reasoning, and limited evidence of supervision.

At that point, the file does not support the position.

What needs to change

Decisions must be recorded at the point they are made. The file must clearly show reasoning, supervision, and consistent handling of similar matters.

This must be visible on the file: not additional process, but ensuring the work can be relied on when tested.

Outcome

- Clear, consistent records across matters with visible supervision on file
- Reduced reliance on retrospective explanation with greater defensibility on review or challenge

The difference is no longer just the advice given, but whether your file can support it if tested.

© 2026 Law Edge Professional CPD. All rights reserved.

What changes on file - Key Case Developments

Lifetime gifts and intention

Recent case: *Lumb v Lumb* (2023, High Court)

On file

Lifetime gifts are often successfully challenged, particularly where:

- the transfer is close to death
- one beneficiary is preferred
- the reason for the gift may later be questioned

In these matters, the outcome depends on the file.

What matters on file

The issue is not whether the gift was made, but whether the file clearly shows:

- why it was made
- what advice was given
- how any risk was addressed

This is where files fail.

Why this matters

When reviewed, the decision stands or falls on what is recorded.
If it is not recorded:

- the file does not support the outcome
- the advice cannot be demonstrated

At that point, the file does not support the position. The firm is left without a defensible position.
This is where challenges succeed.

If this is challenged, the firm must be able to defend the decision from the file.

What needs to happen

Decisions must be recorded at the point they are made.
The file must clearly show:

- the client's reason for the gift
- the advice given
- any foreseeable risk of challenge
- how that advice links to the decision

This is not additional process. It is what allows the firm to defend the decision if challenged.

Outcome

This gives the firm a defensible position if the decision is challenged.

Final Point

Courts assess what is evidenced on the file, not what was intended.
If it is not recorded, the firm cannot rely on it.

© 2026 Law Edge Professional CPD. All rights reserved.

What changes on file - Legislation and Regulatory Developments

Finance Act 2025: Key Private Client Changes

On file

Finance Act 2025 changes mean earlier tax assumptions may no longer hold, particularly where:

- APR or BPR relief is central to planning
- the nil-rate band has been relied on
- trusts were treated as low-risk from a reporting perspective

In these matters, the current position depends on what is in the file.

What matters on file

The issue is not the change in law.
It is whether the file shows:

- what assumptions were relied on
- whether those assumptions still apply
- what advice reflects the current position

This is where files fail.

Why this matters

On review, the position stands or falls on what is recorded.
If assumptions have not been revisited:

- the file does not support the position
- the advice is outdated
- exposure is not visible

At that point, the file does not support the position.
The firm cannot rely on the advice or defend the position. This is where the firm is exposed.

What needs to happen

Relevant files must be revisited where earlier assumptions may no longer apply.
The file must clearly show:

- what assumptions were previously relied on
- what has changed under the current rules
- whether the advice has been updated
- any resulting compliance or reporting obligations

This is not additional process.
Without this, the firm cannot rely on its advice if tested.

Tax planning is tightening, review existing structures before they fail.

Outcome

This gives the firm a defensible position if the advice is reviewed or challenged.

Final point

The position is not determined by what was previously advised, but by what is recorded on the file now. If it is not updated, the firm is relying on outdated assumptions it cannot defend.

© 2026 Law Edge Professional CPD. All rights reserved.

Practice Note

Digital Assets in Probate

Standard approach to identification and control

Digital assets exist across most estates but are not consistently identified or recorded.
In these matters, control depends on what is recorded on the file.

What matters on file

The issue is not awareness.
It is whether the file shows:

- what assets exist
- how they are accessed
- whether they can be realised or transferred

This is where files fail.

Why this matters

On review, control stands or falls on what is recorded.
If digital assets are not identified:

- the file does not show what exists
- access cannot be demonstrated
- the file does not support the position

At that point, the firm cannot demonstrate control of the estate or rely on the position.
The position cannot be defended.

What needs to happen

Digital assets must be identified and recorded at the outset.
The file must show:

- what exists
- where it is held
- how access is controlled
- any limitations
- advice given

This is not additional process.
It is what allows the firm to demonstrate control if tested.

Outcome

This gives the firm a defensible position on control of the estate.

Final point

Control must be evidenced on the file.

If it is not recorded, the firm cannot demonstrate control of the estate.

© 2026 Law Edge Professional CPD. All rights reserved.